

ENTITLED: “PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO LI LIGHT INDUSTRIAL FOR HUTCHINS CORNER 2ND FILING LOTS 4 & 5, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO CAMPSTOOL ROAD, WEST OF HUTCHINS DRIVE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on February 4, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as Hutchins Corner 2nd Filing Lots 4 & 5, Laramie County, Wyoming is hereby changed to LI Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

STAFF REPORT

Hutchins Corner 2nd Filing Lots 4 & 5 Zone District Map Amendment Process

CASE NUMBER: UDC-18-00406 **SUBDIVISION CODE:** HTNC02
PREPARED BY: Tawn Hillenbrand

OWNER Honnen Ventures of Wyoming LLC
5055 E. 72nd Avenue
Commerce City, CO 80022

AGENT: Coffey Engineering & Surveying
c/o Ginger Brown
902 S. 3rd Street
Laramie, WY 82070

PROJECT: Hutchins Corner 2nd Filing Lots 4 & 5 Zone Change.

DESCRIPTION: A zone change request from CB Community Business to LI Light Industrial for two contiguous vacant parcels.

LOCATION:

1. Legal Description: Hutchins Corner, 2nd Filing: Lot 4, Block 1 and Hutchins Corner, 2nd Filing: Lot 5, Block 1.
2. Location: Located south of and adjacent to Campstool Road, west of Hutchins Drive.
3. Address: Unaddressed.

PROPERTY SIZE: 4.72 acres

CURRENT ZONING: CB Community Business
PROPOSED ZONING: LI Light Industrial
EXISTING LAND USE: Vacant
PROPOSED LAND USE: Outdoor sales and Automobile Service Repair

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	HI	City
South	Outdoor Sales & Automobile Service Repair	LI	City
East	Large-scale Retail & Automobile Service Repair	HI	City
West	Vacant	HI	City

EXECUTIVE SUMMARY:

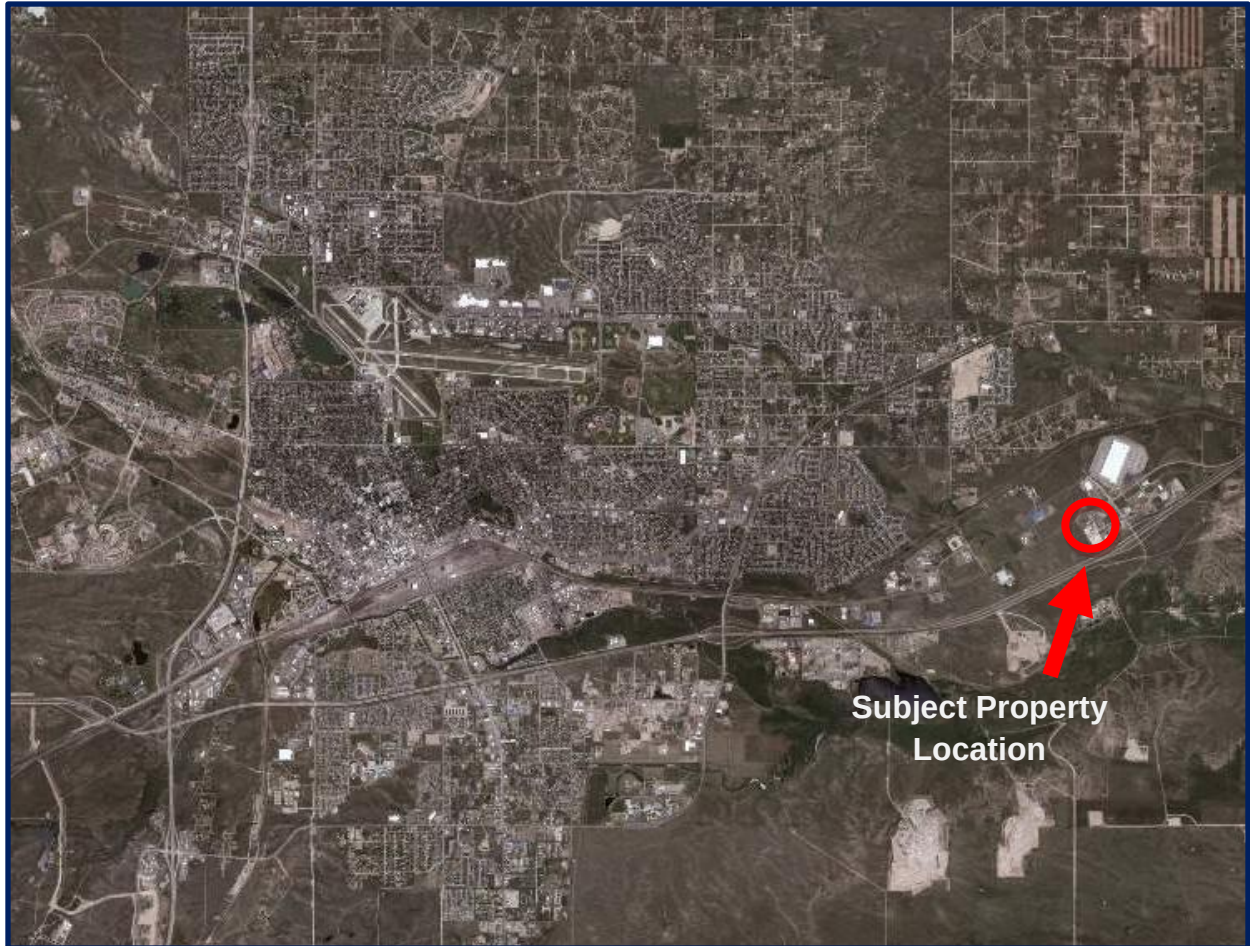
This zone change application proposes changing two contiguous lots located at the corner of Campstool Road and Hutchins Drive from CB Community Business to LI Light Industrial. This land totals about 4.72 acres. This land is currently vacant, and the applicant proposes developing the property with a large equipment retailer (specifically tractors) and equipment services facility.

PlanCheyenne generally considers LI zoning an appropriate zone in areas designated Industrial by the Future Land Use Map. The LI zone is compatible with the surrounding area and the proposed development on the parcels in question.

The LI zone district is intended for intensive employment uses that may have accessory commercial, service or office uses, but cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations. Uses in the LI zone district often have impacts such as noise, outdoor storage, and freight needs that make them incompatible in other areas of the community. The proposed development as well as the current commercial development in this area match the development patterns anticipated by areas zoned LI.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located at the southwest corner of Campstool Road and Hutchins Drive

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph #1- Looking northwest across the property from Hutchins Drive. Source: Development Staff



Photograph #1- Looking southwest across the property from Hutchins Drive. Source: Development Staff

ZONE CHANGE DATA: *In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following 8 criteria of UDC Section 2.2.1.d:*

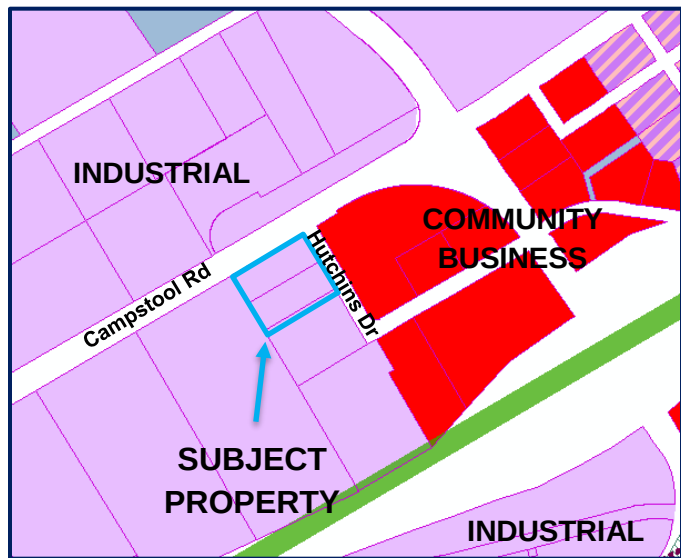
1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change.

PlanCheyenne encourages the City to grow within the Urban Service Boundary and to maximize the use of existing infrastructure. The subject property is within the Urban Service Boundary.

This area is designated Industrial by the Future Land Use Map, and PlanCheyenne encourages multiple industrial zones in the Industrial category, including LI Light Industrial zone. Examples of primary uses anticipated in this area include offices and distribution as well as variety of supporting and complementary uses, such as retail and services. The applicant is proposing to develop this property with a large equipment (specifically tractors) retailer and equipment service facility. The proposed use is compatible with the Future Land Use Plan and PlanCheyenne.

Zone Districts



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

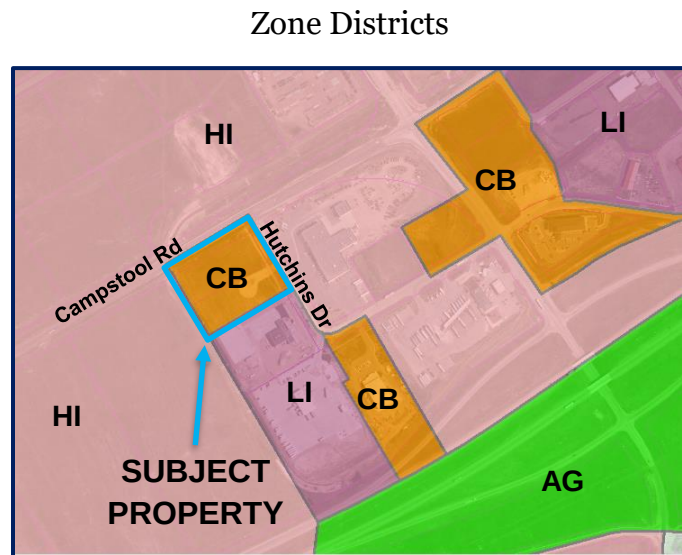
2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The proposed zoning designation is compatible with the zoning of adjacent properties as it matches the zoning of land to the south. Properties to the west, north, and east are zoned HI Heavy Industrial. Like the LI zone district, the HI zone district is applicable to larger land areas that are capable of providing substantial buffers to adjacent sites, buildings, and uses. Uses intended in the HI zone are of similar intensity as the uses intended in the LI zone making them compatible.

The Comprehensive Plan designates this area as Industrial. The LI zone is considered appropriate zone for areas designated Industrial according to PlanCheyenne.

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property is currently within the CB Community Business zoning district. The proposed zone district is LI Light Industrial. The applicant is proposing to develop this property with a large equipment (specifically tractors) retailer and equipment service facility. Setbacks and lot coverage requirements for the current zone district are identical to those of the proposed zone district. Changing the zone district from CB to LI would remove building design standards allowing for more flexibility when designing the proposed structure. Lot access width standards for the LI zone district allow significantly wider accesses than the access width standards established for the CB zone district. The wider accesses widths allowed in the LI zone would be more compatible with the access widths allowed and/or built on neighboring properties and to accommodate the larger vehicles and trailers for the Applicant's proposed use.



Map #4 – Current Zone Districts

Source: Cheyenne/Laramie County GIS Cooperative Program

4. SUBDIVISION STANDARDS - *The ability of the subject property and surrounding vicinity to be developed per the Subdivision Standards in Article 4 considering the proposed zoning.*

The applicant is proposing this zone change without proposing any changes to the streets or blocks. This zone change does not negatively affect the ability of this land and the surrounding land to meet any of the other standards found in Article 4.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards.*

According to the UDC (section 5.5.1), the LI zone district is intended for environmentally controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses, but that cannot easily fit into other general business or mixed-use areas due to the nature of the operation.

The proposed development is located in an area that is relatively undeveloped but has been designated Industrial on the Future Land Use Map. The adjacent property to the south is a large equipment retailer with outdoor sales, similar to the proposed project. The property to the east is also a large equipment retailer while the properties to the west and north remain vacant. The property is within a half mile of Interstate-80 and within a short distance to the railroad, two important factors in siting industrial areas.

The proposed LI zone district is not required to meet any design standards. Setbacks and lot coverage requirements for the current CB zone district are identical to those of the proposed LI zone district. The application has the ability to meet the required setbacks and lot standards established by the proposed LI zone.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The applicant is proposing rezoning this land with the intent to develop the property with a large equipment retailer (specifically tractors) and equipment services facility which includes outdoor sales. The applicant is pursuing a Conditional Use Application for outdoor sales concurrently with this zone change application. The proposed development is able to meet all standards of the proposed zone district. The LI zone would allow a variety of commercial and low-intensity industrial uses including but not limited to office space, general retail, grocery store, or artist studios in the event the specific development proposed in association with this zone change application is not executed.

7. REVIEW

Agencies with comments:

Development: Tawn Hillenbrand

Setbacks and lot coverage requirements do not change with this zone change. Changing from CB to LI removes building design standards. Industrial zoning allows for wider lot access making the proposed LI zone district more suitable for the proposed development. (FYI)

Urban Planning: Tawn Hillenbrand

This area is designated Industrial on the Future Land Use Plan in PlanCheyenne. LI zoning is an appropriate zone designation for this area. Surrounding zoning includes HI and LI; the proposed LI zone district is compatible with these districts. (FYI)

Development: Susana Montana

Note that outdoor storage is a conditional use in the LI zone and Limited Outdoor Storage is a principle use. Either outdoor storage requires screening per UDC 5.8.6. P&D STAFF: Provided as FYI.

Reviewing agencies without comments:

Engineering Department: Amy Allen

*Engineering Department: Molly Bennett
GIS/Engineering/Addressing: Gary Stogsdill
Metro Planning Office (MPO): Nancy Olson*

Reviewing agencies without response:

Parks and Recreation Admin: Sam Payne

Other Comments:

None

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety, or general welfare.*

City staff is satisfied that this proposed zone change would not harm the public health, safety, or welfare of the public.

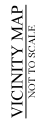
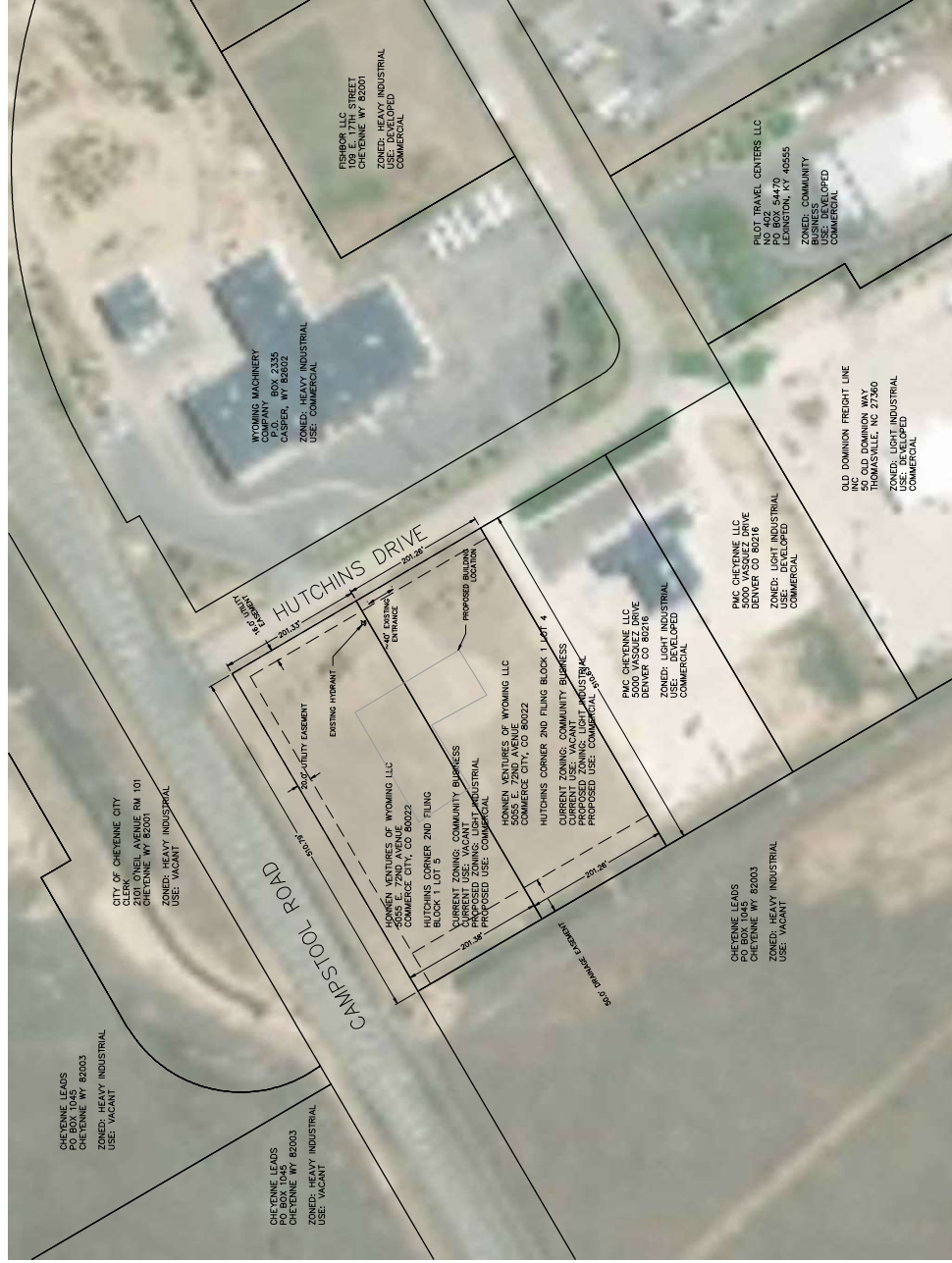
Cc: Owner, Agent/Applicant, File

Encl: Zone Change Map

SEC. 31, T14N, R65W, 6TH P.M. TARRANT COUNTY, WYOMING

[illegible]

12/10/2018



THIS PROJECT IS PROPOSED AS AN OUTDOOR SALES AND EQUIPMENT REPAIR YARD LOCATED TO THE SOUTHWEST OF THE INTERSECTION OF HUTCHINS DRIVE AND CAMPSFORD ROAD. UTILITY SERVICES ARE PROPOSED TO THE IN TO MAIN LINES ON HUTCHINS DRIVE.

CURRENT ZONING: COMMUNITY BUSINESS
PROPOSED ZONING: LIGHT INDUSTRIAL

1. THE PROPOSED SITE WILL HAVE TWO ENTRANCES OFF OF HUTCHINS DRIVE.
2. PAVED PARKING AREAS IN THE FRONT OF THE BUILDING ALONG WITH UNPAVED PARKING AREAS WILL BE AROUND THE SIDES AND BACK OF THE BUILDING.
3. EXISTING AND PROPOSED FENCES ARE PER FINAL PLAT HUTCHINS CORNER 2ND DATED SEPTEMBER 2007.

